

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Filip Woroniecki	Team: Squad #12	CCRB Case #: 201802702	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 04/02/2018 1:35 AM	Location of Incident: Vicinity of 113 Jane Street	18 Mo. SOL 10/2/2019	Precinct: 06		
Date/Time CV Reported Fri, 04/06/2018 6:36 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Fri, 04/06/2018 6:36 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			Unknown
2. POF Jennifer Driscoll	07407	958524	006 PCT
3. POM Brian Ferguson	06843	938470	006 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Brian Ferguson	Abuse: Police Officer Brian Ferguson refused to provide his name and shield number to § 87(2)(b)	A . Unsubstantiated
B . POF Jennifer Driscoll	Abuse: Police Officer Jennifer Driscoll refused to provide her name and shield number to § 87(2)(b)	B . Unsubstantiated
C . An officer	Abuse: An officer threatened § 87(2)(b) with the use of force.	C . Officer(s) Unidentified
D . An officer	Discourtesy: An officer acted discourteously toward § 87(2)(b)	D . Officer(s) Unidentified

Case Summary

On April 6, 2018, § 87(2)(b) filed this complaint with the CCRB in-person.

On April 2, 2018, at about 1:35 a.m., § 87(2)(b) was in front of Jane Hotel, located at 113 Jane Street in Manhattan, when he observed a marked RMP, containing PO Brian Ferguson and PO Jennifer Driscoll of the 6th Precinct, drive up to him. § 87(2)(b) approached the RMP, asked the officers why they were following him, and requested their names and shield numbers. PO Ferguson and PO Driscoll allegedly did not reply to his request (**Allegation A and B: Abuse of Authority – Refusal to provide name/shield number, Unsubstantiated**). § 87(2)(b) then walked a block over to Washington Street between Horatio Street and Jane Street, where he observed a dark colored SUV and dark colored Lexus Sedan stop in his vicinity. An unidentified officer inside of the dark colored Lexus rolled down his window and allegedly yelled toward § 87(2)(b) “You better leave town, NYPD is not going to put up with your crap anymore! We’re going to get rid of you! Leave town or I’ll kill you myself!” (**Allegation C: Abuse of Authority – Threat of force, Officer Unidentified**). After looping around the block, the same officer stopped next to § 87(2)(b) and allegedly showed him the middle finger from inside of the vehicle (**Allegation D: Discourtesy – Action, Officer Unidentified**). § 87(2)(b) was not arrested and did not receive any summonses during this incident.

There was no video footage of this incident.

Allegation A: Abuse of Authority - Police Officer Brian Ferguson refused to provide his name and shield number to § 87(2)(b)

Allegation B: Abuse of Authority - Police Officer Jennifer Driscoll refused to provide her name and shield number to § 87(2)(b)

Allegation C: Abuse of Authority - An officer threatened § 87(2)(b) with the use of force.

Allegation D: An officer acted discourteously toward § 87(2)(b)

§ 87(2)(b) stated that while he was on Jane Street between West Street and Washington Street in Manhattan, he observed RMP # 3084 drive in his direction. When the RMP stopped near him, § 87(2)(b) positioned himself three feet away from its front passenger side, and through an opened window, asked PO Ferguson and PO Driscoll why they were following him. The officers did not reply and § 87(2)(b) asked them for their names and shield numbers. PO Ferguson and PO Driscoll did not answer and drove away from § 87(2)(b). As § 87(2)(b) walked over to Washington Street between Horatio Street and Jane Street, RMP # 3084, a dark colored Lexus sedan with license plate number “§ 87(2)(b),” and a dark colored SUV with license plate number “§ 87(2)(b)” stopped near him. A white male with dark hair, who was in his thirties and was dressed in street clothes rolled down the window of the Lexus sedan and yelled at § 87(2)(b) “You better leave town, NYPD is not going to put up with your crap anymore! We’re going to get rid of you! Leave town or I’ll kill you myself!” All three vehicles then looped around the block, simultaneously stopped near § 87(2)(b) and the occupant of the Lexus sedan opened his door, yelled at § 87(2)(b) and showed him the middle finger. The marked RMP, Lexus sedan, and the SUV then drove away from the incident location. § 87(2)(b) noted that both unmarked vehicles had tinted windows and normal antennas, and there was nothing indicative of them being police vehicles (**Board Review 01**).

PO Ferguson had no independent recollection of this incident, did not recognize § 87(2)(b) from his CCRB photograph, and denied interacting with him on the day of the incident or prior occasions. PO Ferguson did not remember responding to any jobs near the incident locations and did not recall interacting with any civilians during his tour. PO Ferguson was not looking for any specific conditions and did not work with any unmarked vehicles, including a dark Lexus sedan or a dark colored SUV. PO Ferguson did not observe any interaction involving § 87(2)(b) and

- PO Ferguson has been a member of the service for 13 years and has been a subject in one prior CCRB complaint involving three allegations, none of which have been substantiated § 87(2)(g) (Board Review 11).
- PO Driscoll has been a member of the service for three years and has not been a subject in any prior CCRB complaints (Board Review 12).

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
- As of July 10, 2018, there was no Notice of Claim filed for this complaint (**Board Review 14**).

Squad No.: 12

Investigator: _____ INV. WORONIECKI 08/31/2018
Signature Print Title & Name Date

Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature _____ Print Title & Name _____ Date _____